

1 HOUSE BILL NO. 214

2 INTRODUCED BY C. HINKLE, L. SCHUBERT, K. LOVE, T. SHARP, E. BYRNE, L. BENNETT, C. SCHOMER,
3 E. TILLEMANN, T. MANZELLA, D. ZOLNIKOV, D. EMRICH, J. FULLER, R. MARSHALL, N. NICOL, A. REGIER,
4 D. LOGE, C. GLIMM, B. LER, J. SCHILLINGER, K. ZOLNIKOV, J. ETCHART, L. DEMING, F. NAVE, B.
5 USHER, J. GILLETTE, L. BREWSTER, T. FALK, P. FIELDER, G. KMETZ, B. MITCHELL, G. NIKOLAKAKOS,
6 M. NOLAND, K. SEEKINS-CROWE, Z. WIRTH, S. MANESS, K. BOGNER, J. HINKLE, B. PHALEN

7
8 A BILL FOR AN ACT ENTITLED: "AN ACT PROVIDING FOR THE PROSECUTION OF STATE CRIMES
9 AGAINST PERSONS THAT ARE SUBJECT TO FEDERAL IMMIGRATION DETENTION."

10
11 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

12
13 NEW SECTION. **Section 1. Criminal prosecution of persons subject to federal immigration**
14 **detention.** (1) The state may initiate a criminal prosecution against a person who is subject or may be subject
15 to federal detention for federal immigration violations for a violation of criminal law committed in this state.
16 (2) If a criminal prosecution has been instituted against a person under the laws of this state and is
17 still pending, the state may surrender the person to the federal government on demand for federal immigration
18 violations or hold the person until the person has been tried and discharged or convicted and punished in this
19 state.

20
21 NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an
22 integral part of Title 46, chapter 1, part 1, and the provisions of Title 46, chapter 1, part 1, apply to [section 1].

23 - END -